

25CMCV00477 25CMCV00477

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

Motion: PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES

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Case Number: 25CMCV00477 Hearing Date: June 30, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

SHARON EVET COLLINS,

Plaintiff,

vs.

NISSAN

NORTH AMERICA, INC.,

Defendant.

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CASE NO: 25CMCV00477

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES

Dept.

A

DATE:

June 30, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/21/2025

TRIAL:

02/03/2027

MOVING PARTY: Plaintiff

Sharon Evet Collins

RESPONDING PARTY: Defendant

Nissan North America, Inc.

1. Background

This is an action brought under the Song-Beverly Act. Plaintiff Sharon Evet Collins ("Plaintiff") alleges that on November 23, 2019, Plaintiff entered into a warranty contract with defendant Nissan North America, Inc. ("Defendant") regarding a 2019 Nissan Kicks (the "Vehicle"). Plaintiffs allege that defects and nonconformities to warranty manifested themselves in the Vehicle within the applicable express warranty period, substantially impairing the use, value, or safety of the Vehicle.

2. Request for Judicial Notice

Defendant

requests that the court take judicial notice of minute orders in various other cases.

Factual

findings in prior judicial orders, opinions, or decisions are not a proper subject of judicial notice. (Kilroy v. State of Calif. (2004) 119 Cal.App.4th 140, 148.) Nor does the court take judicial notice of matters not relevant to the proceeding. (People ex rel. Lockyer v. Shamrock Foods Co. (2000) 24 Cal.4th 415, 422, fn. 2.) However, pursuant to California Evidence Code 452, subd. (c), judicial notice may be taken of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States."

The court

declines to take judicial notice of the requested documents as not relevant to the proceeding.

3. Discussion

Plaintiff

moves to compel Defendant's initial discovery disclosures, pursuant to Code of Civil Procedure § 871.26. Plaintiff contends that Defendant failed to timely provide these initial disclosures. In opposition, Defendant contends that the disclosures have been provided since the filing of the instant motion and that sanctions are unwarranted because the parties agreed to pause their disclosure obligations while engaged in active settlement negotiations.

Under Code of

Civil Procedure § 871.26, subdivision (b), "[w]ithin 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).) Subdivisions (f), (g), and (h) set out the specific disclosures and documents required to be disclosed.

Defendant

concedes that the requested initial disclosures were not timely served. However, Defendant contends that the motion is moot because disclosures were served on April 14, 2026. (Sweeney Declaration, ¶ 10.) Although Plaintiff sets forth in her motion specific discovery that she seeks within Defendant's initial disclosures, and Defendant disputes the scope of the requested discovery, Plaintiff has not filed a reply contending that Defendant's initial disclosures are inadequate or not code-compliant.

Defendant has

served its initial disclosures. The instant motion is therefore moot to the extent that it seeks an order compelling disclosures. It is not moot with respect to the issue of sanctions.

Plaintiff

requests monetary sanctions against Defendant "and/or its counsel of record" in the amount of \$2,500, pursuant to Code of Civil Procedure § 871.26, subd. (j)(1).

Code of Civil

Procedure § 871.26, subd. (j)(1) provides that, unless the offending party makes a showing of good cause, the court shall impose a \$2,500 sanction upon a defense attorney who fails to comply with the provisions of Section 871.26.

By requesting

a generic award of monetary sanctions against Defendant's "counsel of record," Plaintiff has failed to clearly identify "every person, party, and attorney against whom the sanction is sought," as is required by Code of Civil Procedure § 2023.040. The court will therefore deny Plaintiff's request for monetary sanctions against Defendant's "counsel of record."

Code of Civil

Procedure § 871.26 only provides for monetary sanctions against counsel, not against a party directly. Therefore, the court will deny Plaintiff's request for monetary sanctions against Defendant.

4. Conclusion

Based on the foregoing, the court DENIES Plaintiff's motion to compel initial disclosures pursuant to Code of Civil Procedure § 871.26. The court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: June 30, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court